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JUDGE SCHEINDLIN

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

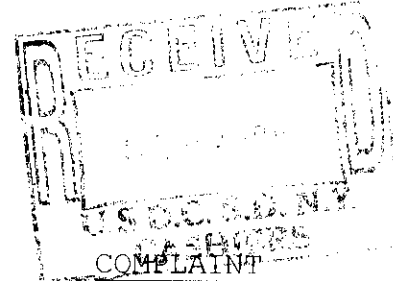
-----X
DEBORAH JONES-BROWN,

Plaintiff,

-against-

THE CITY OF NEW YORK,
VANESSA MATEO, and JULIO JIMENEZ,

Defendants.
-----X



Plaintiff Demands
Trial By Jury

Plaintiff, by her attorneys, The Law Office of Ameer Benno, complaining of defendants, alleges as follows, upon information and belief:

THE PARTIES AND JURISDICTION

1. That plaintiff is a citizen of the State of New York.

2. This action is brought pursuant to 42 USC §§ 1983, 1988, and the Fourth and Fourteenth Amendments to the Constitution of the United States.

3. This Court has subject matter jurisdiction of the action under 28 USC §§ 1331, 1343(a), (3), and (4).

4. This Court may also exercise supplemental jurisdiction over the plaintiff's state law claims that arise from

the same facts and circumstances under 28 USC § 1367.

5. That at all times herein mentioned, defendant CITY of New York (hereinafter "CITY") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

6. That at all times herein mentioned, defendant CITY operated, controlled and maintained a police force known as the New York Police Department ("hereinafter "NYPD").

7. That at all times herein mentioned, defendant VANESSA MATEO (hereinafter "MATEO") was and is an NYPD officer employed by defendant CITY.

8. That at all times herein mentioned, defendant MATEO was acting within the course and scope of her employment with defendant CITY.

9. That at all times herein mentioned, defendant MATEO was acting under color of state law.

10. That at all times herein mentioned, defendant JULIO JIMENEZ (hereinafter "JIMENEZ") was and is an NYPD officer employed by defendant CITY.

11. That at all times herein mentioned, defendant JIMENEZ was acting within the course and scope of his employment with defendant CITY.

12. That at all times herein mentioned, defendant JIMENEZ was acting under color of state law.

13. That at all times herein mentioned, defendant CITY was under an obligation to use reasonable care in the hiring, training, retention, and supervision of its employees.

14. That prior to the institution of this action and within ninety (90) days from the date when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with the CITY on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and the CITY has neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

15. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.

JURY TRIAL DEMANDED

16. Plaintiff demands a trial by jury on each and every one of his claims as pleaded herein.

VENUE

17. Venue is proper for the United States District Court for the Southern District of New York pursuant to 28 U.S.C. § 1391 (b) and (c).

STATEMENT OF FACTS

18. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

19. That on April 10, 2009, plaintiff was visiting Pearl Barkley, the vice president of the Tenant's Association of the Jefferson Housing Projects in East Harlem, who resided within

a apartment building owned and/or managed by the New York City Housing Authority (hereinafter "NYCHA") and located at 2205 Second Avenue in the County and State of New York (hereinafter, "the building").

20. At the conclusion of plaintiff's visit with her Ms. Barkley, plaintiff left said building.

21. As plaintiff exited said building, she passed defendants MATEO and JIMENEZ, who were standing inside the lobby of said building.

22. After plaintiff had exited said building, defendants MATEO and JIMENEZ told plaintiff to come back inside the building.

23. Defendants MATEO and JIMENEZ were wearing NYPD uniforms.

24. Plaintiff approached defendants MATEO and JIMENEZ, and defendants MATEO and JIMENEZ asked plaintiff what she had been doing in the building.

25. Plaintiff responded that it was none of defendants' business.

26. Defendants MATEO and JIMENEZ then demanded that plaintiff produce identification.

27. Plaintiff provided defendants MATEO and JIMENEZ with her New York State Driver's License card, which indicated that she resided in a another Jefferson Housing building adjacent to the one from which she had just exited.

28. Thereafter, defendants MATEO and JIMENEZ handcuffed and arrested plaintiff, without any right or justifiable grounds

therefor.

29. Following plaintiff's arrest, she was placed into police custody and taken to the police stationhouse, where her arrest was processed and her personal property including items of jewelry were removed from her person.

30. Plaintiff was physically searched and her fingerprints were taken.

31. Plaintiff was held for several hours in a cell at the police precinct.

32. Plaintiff complained that the cell she was in was cold, and was told by an unseen police officer to be quiet.

33. Plaintiff was brought to Central Booking to await arraignment.

34. Plaintiff was held in a cell at Central Booking for several hours.

35. Defendant MATEO was designated the "arresting officer" in the criminal prosecution of plaintiff.

36. Defendant MATEO signed a criminal complaint charging plaintiff with Criminal Trespass in the Second Degree and Harassment in the Second Degree, and defendant MATEO signed the complaint at approximately 6:00 p.m. on April 10, 2009.

37. In the criminal complaint, defendant MATEO swore under penalty of perjury that prior to arresting plaintiff, defendant MATEO had observed plaintiff spit on defendant JIMENEZ. This spitting allegation formed the basis of the second-degree harassment count, and was, like the other allegations in the complaint, entirely fabricated and completely untrue.

38. On April 11, 2009, after having been unlawfully deprived of her liberty for approximately twenty-four hours, plaintiff was arraigned in New York County Criminal Court.

39. At her arraignment, plaintiff was charged upon the criminal complaint that had been signed by defendant MATEO, under New York County Docket Number 2009NY029465, with one count each of Criminal Trespass in the Second Degree and Harassment in the Second Degree.

40. Plaintiff pleaded not guilty to both counts, and she was released on her own recognizance.

41. Plaintiff thereafter was required on several occasions to appear in court to defend against the charges that had been lodged against her.

42. On or about July 13, 2009, plaintiff appeared in criminal court to defend against the criminal charges lodged against her.

43. On July 13, 2009, the criminal trespass count was dismissed by the criminal court after plaintiff submitted an affidavit from Ms. Barkley stating that ON April 10, 2009, she lived in an apartment inside 2205 Second Avenue, that on that date, plaintiff had been an invited guest at her home, and that plaintiff had been arrested upon leaving Ms. Barkley's home that day.

44. Nevertheless, the judge of the criminal court adjourned the matter to September 9, 2009 for plaintiff to stand trial on the remaining harassment count, since both defendants MATEO and JIMENEZ continued to knowingly falsely and maliciously

assert that plaintiff had spit upon defendant JIMENEZ.

45. On September 9, 2009, plaintiff was once again required to appear in criminal court to defend against the charge against her. On that date, the harassment charge against plaintiff - the sole remaining charge under Docket 2009NY029465 - was dismissed by the Honorable Judge Felicia Mennin.

46. The conduct of defendants MATEO and JIMENEZ in summarily arresting individuals observed in NYCHA buildings for trespass and related offenses despite lacking any reasonable cause or belief that those individuals are in fact guilty of those offenses or any other crimes was consistent with an institutionalized practice of the NYPD, which was known to and ratified by the defendant CITY.

47. Despite knowledge of these institutionalized practices, the defendant CITY has at no time taken any effective action to prevent NYPD personnel from continuing to engage in this type of misconduct.

48. That plaintiff at no times engaged in any prohibited or illegal conduct to warrant being arrested.

49. That as a result of the aforesaid actions of defendant CITY, its agents, servants and/or employees, including defendants MATEO and JIMENEZ, plaintiff experienced great indignities, including severe humiliation, physical and emotional distress, pain and suffering, loss of liberty, and was otherwise damaged, and incurred expenses, including legal fees, in connection with the defense on the charges that were lodged against her.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment)

50. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

51. That plaintiff's arrest, detention and imprisonment was caused by the CITY, its agents, servants and/or employees, including MATEO and JIMENEZ, without a warrant and without any reasonable cause or belief that plaintiff was in fact guilty of any offense.

52. That defendant CITY, its agents, servants and/or employees, as set forth above, intended to confine plaintiff; that plaintiff was conscious of the confinement; that plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

53. That by virtue of the aforementioned acts, defendants are liable to plaintiff for false arrest and false imprisonment.

54. That defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

55. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of liberty and a loss of enjoyment of life, and suffered economic loss and other damages.

56. The amount of damages sought in this action

exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

SECOND CAUSE OF ACTION AGAINST DEFENDANTS MATEO AND JIMENEZ
(42 U.S.C. § 1983 based on False Arrest/Imprisonment)

57. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

58. That by virtue of the aforementioned unlawful arrest and imprisonment, plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States, including his rights under the Fourth and Fourteenth Amendments to the U.S. Constitution to be free from unreasonable or unlawful searches and seizures.

59. That defendants MATEO and JIMENEZ are sued in their individual and official capacities.

60. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, and suffered economic loss and other damages.

61. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution)

62. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length

herein.

63. That by virtue of the aforementioned acts, defendants are liable to plaintiff for malicious prosecution.

64. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, and suffered economic loss and other damages.

65. That defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

66. That defendant RITE AID is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

67. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

FOURTH CAUSE OF ACTION AGAINST DEFENDANTS MATEO AND JIMENEZ
(42 U.S.C. § 1983 based on Malicious Prosecution)

68. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

69. That by virtue of the aforementioned acts, plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States, including his

rights under the Fourth and Fourteenth Amendments to the U.S. Constitution to be free from unreasonable or unlawful searches and seizures.

70. That defendants MATEO and JIMENEZ are sued in their individual and official capacities.

71. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, and suffered economic loss and other damages.

72. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

FIFTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault)

73. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

74. That by virtue of the aforementioned acts, defendants are liable to plaintiff for assault.

75. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, and suffered economic loss and other damages.

76. That defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees under the doctrine of respondeat

superior.

77. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

SIXTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Battery)

78. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

79. That by virtue of the aforementioned acts, defendants are liable to plaintiff for battery.

80. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, and suffered economic loss and other damages.

81. That defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

82. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Negligence/Gross Negligence)

83. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length

herein.

84. That the aforesaid unlawful arrest, imprisonment, and prosecution and resulting injuries were due to the negligence of defendant CITY and its agents, servants and/or employees, including defendant MATEO and JIMENEZ, in failing adequately to evaluate the situation confronting them, in the manner in which they performed their duties as officers of the NYPD, in failing to exercise reasonable care in connection with their performance of their duties, and in otherwise being negligent.

85. That defendant CITY is also liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

86. That the aforementioned incident and injuries were caused solely and wholly by reason of the recklessness, carelessness, and negligence/gross negligence of the defendants herein and without any negligence on the part of the plaintiff contributing thereto.

87. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, and suffered economic loss and other damages.

88. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Intentional Infliction of Emotional Distress)

89. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

90. The acts by defendant CITY and its agents, servants and/or employees, including defendants MATEO and JIMENEZ, were extreme, outrageous, shocking and exceeded all reasonable bounds of decency.

91. Said extreme and outrageous conduct was intended to cause and did cause severe emotional distress to plaintiff.

92. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, and suffered economic loss and other damages.

93. That defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

94. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

NINTH CAUSE OF ACTION AGAINST DEFENDANT CITY
(Negligent Training, Supervision, and Retention)

95. Plaintiff repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

96. That the aforesaid actions by defendants MATEO and JIMENEZ were the result of the negligence of defendant CITY in failing to use reasonable care in the hiring, supervision, training, retention, and/or disciplining of said defendant police officers, and in failing to use reasonable care in monitoring and auditing citizen complaints and other claims of police misconduct within the NYPD.

97. That due to said negligent hiring, supervision, training, retention and/or disciplining, and said negligent monitoring and auditing, by defendant CITY of defendants MATEO and JIMENEZ, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, and suffered economic loss and other damages.

98. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

TENTH CAUSE OF ACTION AGAINST DEFENDANT CITY
(42 U.S.C. §1983 - "Monell" Claim)

99. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

100. The conduct of defendants MATEO and JIMENEZ in summarily arresting individuals observed in NYCHA buildings for trespass and related offenses despite lacking any reasonable cause or belief that those individuals are in fact guilty of those

offenses or any other crimes or offenses was consistent with an institutionalized practice of the NYPD, which was known to and ratified by the defendant CITY.

101. Despite knowledge of these institutionalized practices, the defendant CITY has at no time taken any effective action to prevent NYPD personnel from continuing to engage in this type of misconduct.

102. Defendant CITY authorized, tolerated as institutionalized practices and ratified the misconduct detailed above by failing to take adequate precautions in the supervision and/or training of police personnel, including specifically defendants MATEO and JIMENEZ.

103. That defendant CITY's policies/customs and defendant CITY's failure to supervise and/or train defendants MATEO and JIMENEZ rose to the level of deliberate indifference to the consequences of its actions, and indifference to plaintiff's rights, privileges and immunities secured by the Constitution of the United States of America, inter alia, plaintiff's Fourth, Fifth, and Fourteenth Amendment rights.

104. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, and suffered economic loss and other damages.

105. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Violation of Article I, § 12 of the New York State Constitution)

106. Plaintiff repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

107. That by virtue of the aforementioned acts, defendants are liable to plaintiff for violating her right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

108. The acts and conduct of the agents and employees of defendant CITY, including defendants MATEO and JIMENEZ, were the direct and proximate cause of injury and damage to plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

109. That defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

110. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, and suffered economic loss and other damages.

111. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise

have jurisdiction.

TWELFTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Violation of Article I, § 6 of the New York State Constitution)

112. Plaintiff repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

113. Defendants, through the actions alleged above, consciously disregarded known and excessive risks to plaintiff's liberty and welfare and engaged in a pattern of behavior and conduct in furtherance of a plan to secure and sustain an unjust conviction against plaintiff, including but not limited to engaging in a pattern and course of conduct of falsifying and fabricating their account of what occurred, including but not limited to concocting a false account that plaintiff spit saliva upon them, and in so doing deliberately misled the prosecutors and the court.

114. That by virtue of the aforementioned acts, defendants deprived plaintiff of liberty without due process of law, in contravention of Article I, § 6 of the New York State Constitution.

115. That defendants' said acts and conduct constituted both a procedural and substantive due process violation.

116. The acts and conduct of defendants were the direct and proximate cause of injury and damage to plaintiff and violated

her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York, including but not limited to plaintiff's right to a fair trial.

117. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, and suffered economic loss and other damages.

118. That defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees, including defendants MATEO and JIMENEZ, under the doctrine of respondeat superior.

119. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

THIRTEENTH CAUSE OF ACTION AGAINST MATEO AND JIMENEZ
**(42 U.S.C. § 1983 based on Denial of Procedural
and Substantive Due Process)**

120. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

121. By defendants MATEO and JIMENEZ's conduct and actions described above, engaged in under color of state authority, defendants conspired to interfere with and violate rights secured to plaintiff by the Constitution of the United

States in violation of 42 U.S.C. § 1983, including, but not limited to plaintiff's Fourth, Fifth, Sixth, and Fourteenth Amendment rights.

122. Defendants MATEO and JIMENEZ, through the actions alleged above, consciously disregarded known and excessive risks to plaintiff's liberty and welfare and engaged in a pattern of behavior and conduct in furtherance of a plan to secure and sustain an unjust conviction against plaintiff, including but not limited to engaging in a pattern and course of conduct of deception whereby defendants fabricated evidence and falsified their account of what took place to the prosecutors and the court that plaintiff spit saliva upon them.

123. That said conduct by defendants MATEO and JIMENEZ deprived plaintiff of liberty and of a fair trial, and constituted both a substantive and procedural due process violation under the Fourteenth Amendment.

124. Defendants' fabrication of evidence precipitated the sequence of events that ultimately resulted in the deprivation of plaintiff's liberty.

125. Defendants' conduct in this regard was so egregious and outrageous as to shock the conscience.

126. As a result of the foregoing, plaintiff was deprived of her liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury,

great humiliation, costs and expenses, and was otherwise damaged and injured.

127. That defendants MATEO and JIMENEZ are sued in their individual and official capacities.

128. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

FOURTEENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Abuse of Process under New York State law)

129. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

130. By the conduct and actions described above, defendants employed regularly issued process against plaintiff compelling the performance or forbearance of prescribed acts. The purpose of activating the process was intent to harm plaintiff without economic or social excuse or justification, and the defendants were seeking a collateral advantage or corresponding detriment to plaintiff which was outside the legitimate ends of the process. This included, but was not limited to, covering up defendants' illegal actions in knowingly arresting plaintiff without any legal basis, justification, or probable cause.

131. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and

violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

132. That defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees, including defendants MATEO and JIMENEZ, under the doctrine of respondeat superior.

133. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

FIFTEENTH CAUSE OF ACTION AGAINST MATEO AND JIMENEZ
(42 U.S.C. § 1983 arising out of Malicious Abuse of Process)

134. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

135. By the conduct and actions described above, defendants employed regularly issued process against plaintiff compelling the performance or forbearance of prescribed acts. The purpose of activating the process was intent to harm plaintiff without economic or social excuse or justification, and the defendants were seeking a collateral advantage or corresponding detriment to plaintiff which was outside the legitimate ends of the process. Such collateral objective included, but was not limited to, covering up defendants' illegal actions in knowingly arresting plaintiff without any legal basis, justification, or

probable cause.

136. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and that by virtue of the aforementioned acts, plaintiff was deprived of her rights, privileges and immunities secured by the Constitution of the United States, including her rights under the Fourth, Fifth, Sixth and Fourteenth Amendments to the U.S. Constitution to be free from unreasonable or unlawful searches and seizures.

137. That defendants MATEO and JIMENEZ are sued in their individual and official capacities.

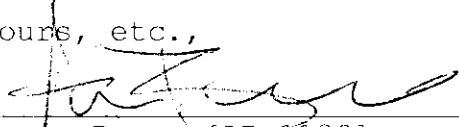
138. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

WHEREFORE, plaintiff demands the following relief jointly and severally against each defendant:

- a. Compensatory damages in an amount against defendants herein which exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction herein;
- b. Punitive damages in an amount to be determined by a jury;
- c. The convening of a jury to consider the merits of the claims herein;
- d. Attorney's fees pursuant to 42 U.S.C. § 1988;
- e. An award of plaintiff's costs of suit;
- f. Pre-judgment and post-judgment interest;
- g. Such other further relief as this Court may deem appropriate and equitable, including injunctive and declaratory relief as may be required in the interest of justice.

Dated: New York, New York
April 9, 2010

Yours, etc.,

By: 

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